

HOUSE BILL 104

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 12; Title 33; Title 34; Title 36; Title 39; Title
49; Title 52; Title 68; Title 71 and Chapter 688 of
the Public Acts of 2024, relative to the department
of disability and aging.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 4-29-248(a)(19), is amended by deleting the language "intellectual and developmental disabilities" and substituting instead "disability and aging".

SECTION 2. Tennessee Code Annotated, Section 4-31-703(3), is amended by deleting the language "intellectual and developmental disabilities" and substituting instead "disability and aging".

SECTION 3. Tennessee Code Annotated, Section 12-2-117(e), is amended by deleting the language "department of intellectual and developmental disabilities" and "department of intellectual and developmental disabilities services" wherever it appears and substituting instead "department of disability and aging".

SECTION 4. Tennessee Code Annotated, Section 33-3-802, is amended by deleting the language ", or intellectual disability".

SECTION 5. Tennessee Code Annotated, Section 33-3-803, is amended by deleting the language ", or intellectual disability".

SECTION 6. Tennessee Code Annotated, Section 33-3-904, is amended by deleting the language ", or developmental disability" wherever it appears.

SECTION 7. Tennessee Code Annotated, Section 34-1-106(b), is amended by deleting the language "intellectual and developmental disabilities" and substituting instead "disability and aging".

SECTION 8. Tennessee Code Annotated, Section 34-1-108(c)(3), is amended by deleting the language "intellectual and developmental disabilities" and substituting instead "disability and aging".

SECTION 9. Tennessee Code Annotated, Section 36-3-106(b), is amended by deleting the language "intellectual and developmental disabilities" and substituting instead "disability and aging".

SECTION 10. Tennessee Code Annotated, Section 39-16-517(b)(2), is amended by deleting the language "as defined in § 33-1-101" and substituting instead "as defined in § 52-1-101".

SECTION 11. Tennessee Code Annotated, Section 49-6-802(b)(8), is amended by deleting the language "intellectual and developmental disabilities" and substituting instead "disability and aging".

SECTION 12. Tennessee Code Annotated, Section 52-3-101(d), is amended by deleting the subsection and substituting instead:

(d) The department and its contracted providers shall keep records detailing services or supports received by each person with an intellectual or developmental disability. Service and support records of departmental facilities and clinics, as well as individual support plan records, must be preserved by the department for not less than ten (10) years after termination of services. Service and support records for minors receiving services in departmental facilities and clinics must be kept for not less than ten (10) years after the minor reaches the age of majority. All other departmental records and records of the department's contracted service providers must be preserved for not

less than six (6) years. The records may be generated, maintained, or transferred in whole or in part to any recording medium that assures accurate preservation of the record. If a record is transferred from one (1) medium to another, then the source record may be destroyed upon determination by the department that the reproduced record is true and correct and will be accurately preserved. The reproduced record is deemed to be the original record.

SECTION 13. Tennessee Code Annotated, Section 52-3-104, is amended by deleting subdivisions (1) and (2) and substituting instead:

(1) A person supported who is an emancipated minor as described in § 52-7-104;

(2) A conservator whom the court has granted the authority to make such disclosures for the person supported or granted the authority to make healthcare decisions for the person supported; provided, however, that a conservatorship over the estate or property alone does not have authority to disclose confidential information under this title;

SECTION 14. Tennessee Code Annotated, Section 68-1-904(c), is amended by deleting "department of intellectual and developmental disabilities" and substituting instead "department of disability and aging" and by deleting "title 33" wherever it appears and substituting instead "title 33 or title 52".

SECTION 15. Tennessee Code Annotated, Section 68-11-201(23)(B), is amended by deleting "pursuant to title 33, chapter 2, part 4" and substituting instead "pursuant to title 52, chapter 2, part 4".

SECTION 16. Tennessee Code Annotated, Section 71-5-105(c), is amended by deleting the subsection and substituting instead:

(c) Notwithstanding any authority to the contrary, DDA public ICF/IID non-facility beds established pursuant to federal litigation settlements or orders arising out of the cases *United States v. State of Tennessee, et al.*, No. 92-2062-ML/A (Docket) (W.D. Tenn. 1992), or *People First of Tennessee, et al., v. Clover Bottom Developmental Center, et al.*, No. 00-5342 (Docket) (C.A.6 Mar. 22, 2000), are exempt from all requirements and processes for the application and granting of certificates of need as set forth in § 68-11-1607. The establishment of all private ICF/IID non-facility beds remains subject to certificate of need requirements and processes.

SECTION 17. SECTION 12 takes effect July 1, 2025, the public welfare requiring it. For all other purposes, this act takes effect upon becoming a law, the public welfare requiring it.